

Austrian Citizenship via §58c StbG — A Practical Guide

Reclaiming Austrian (EU) Citizenship Under §58c — A Plain-Language Guide

For descendants of people persecuted by the Nazi regime who want to reclaim Austrian, and therefore EU, citizenship.

If your grandmother fled Vienna in 1938, or your great-grandfather escaped the Reich for London or New York or Shanghai — Austria has a door open for you, and for your children, and for their children. This is the guide I wish someone had handed me at the start: what §58c actually is, whether you qualify, where the documents live, and how to put it all together and file. No jargon, no gatekeeping.

One honest caveat up front: I'm a fellow applicant, not a lawyer. This is a research-and-organization how-to, not legal advice. Laws and office practices change — confirm the load-bearing details with your responsible Austrian consulate before you rely on them.

Verify against official sources. The two authoritative starting points are **oesterreich.gv.at** (the Austrian government service portal) and **bmeia.gv.at** (the Foreign Ministry). And critically: **each Austrian embassy/consulate publishes its own “Citizenship for persecuted persons and their direct descendants” page**, with the office-specific questionnaire link and document list. Find *your* responsible post's page and treat it as controlling over any general summary — including this guide.

What §58c is (and why it's more generous than people expect)

§58c of the Austrian Citizenship Act lets **direct descendants of people persecuted by the Nazi regime** reclaim Austrian citizenship — which is also EU citizenship. A few things about it surprise almost everyone:

- **There is no generational cap.** Children, grandchildren, great-grandchildren, and further down the line all qualify. If you can document the chain, distance from the ancestor doesn't matter.
- **You keep your current citizenship.** §58c is an explicit exception to Austria's usual “renounce everything else” rule. You *add* Austrian citizenship; you don't give up what you have.

- **It's a declaration, not an application.** You're not petitioning Austria for a favor it may grant or deny at its discretion — you're *notifying* Austria of a legal entitlement you already have. That legal shape is exactly why **you are not required to hire a lawyer.**
- **You never have to live in Austria** — not to file, not to hold the citizenship.
- **The declaration itself is free.** If you were born and live outside Austria, both federal and provincial fees are waived. You pay only for your own documents, their apostilles, and any records you choose to order.
- **Children born *after* you acquire it become Austrian automatically, by descent** — no §58c declaration needed for them. Only descendants who **already exist** on your acquisition date have to file their own declarations; anyone born to you afterward inherits citizenship the ordinary way, like any child of an Austrian citizen.
- **Spouses acquire nothing through §58c.** It is a **descent-only** route. A husband or wife doesn't gain Austrian citizenship by marriage to a §58c beneficiary — only blood/adopted descendants of the persecuted ancestor qualify.

The maternal line counts fully — descent through a mother or grandmother carries no penalty. And it applies to Jews and non-Jews alike, though in practice the clean, routinely-approved profile is a **Jewish ancestor who fled Nazi persecution between 1938 and 1945.**

Do you qualify?

Your ancestor — the “anchor” — needs to satisfy this, in one connected sentence: they held Austrian citizenship (or a former Austro-Hungarian successor-state nationality, or were stateless), had their **main residence in Austria**, and **went abroad — emigrated from Austria — before 15 May 1955 because they suffered, or reasonably feared, persecution** by the Nazis / the German Reich (or because they defended the democratic Republic of Austria).

The **15 May 1955 date bounds the *departure*, not merely the residence** — the ancestor had to have *left* Austria before that date. This matters: someone whose ancestor stayed in Austria until, say, 1957 does **not** qualify on this limb, even if they had once lived there. The classic qualifying case (a Jewish Viennese who fled in 1938/39) is comfortably inside the window; a postwar economic emigrant who left in the 1950s+ is not.

And you need to be a **direct descendant** of that anchor — child, grandchild, great-grandchild, on and on, through any mix of maternal and paternal links. (Children adopted as minors count too.) *The persecuted person themselves may also declare* — rarely relevant this many decades on, but it completes the picture.

A classic qualifying story: a Jewish child or young adult living in Vienna who fled abroad in 1938/39 to escape the Nazis. That fits limb 3 squarely, and the departure is well before the 1955 cutoff. In cases like this, **eligibility is clean on its face** — the real work is *documentation*, not a legal judgment call.

The shape of the work

Here's the single most useful thing to internalize before you start:

Eligibility is usually the easy part. Documentation is the work.

A clean “my ancestor fled the Nazis” story almost always qualifies. Months of effort go into *proving* it — and that proof comes together along **two parallel fronts**:

- **Front A — the persecution and flight story.** Prove the anchor was Austrian and left because of persecution. This lives mostly in Holocaust-era and wartime-refugee archives.
- **Front B — the descent chain.** Prove the unbroken line from the anchor down to you — a birth or marriage certificate for each link. This lives in ordinary civil-registration offices.

The two fronts draw from completely different archives and **don’t block each other**, so work them at the same time.

And a big relief: **Austria does some of the work for you.** The deciding authority — Vienna’s Municipal Department 35, “MA35” — searches Austrian archives itself for the ancestor’s Austrian birth record, citizenship, and last address. Official wording: *“In case you do not have any documents concerning your persecuted ancestor, you do not have to ask for documentation to be searched and sent from Austria. The Austrian authorities will try to find evidence in archives.”* So the scariest-looking gap — “I don’t have Grandma’s 1920 Vienna birth certificate” — is often **not your problem**. You can file *before* those Austrian records are in hand.

(One caution for later: MA35’s own searching is unreliable for genuinely *complex* historical cases, so for a straightforward flight case, lean on it — but still hand them the standard registry documents where you can.)

Where to look

Turn on **name-variant discipline** before you touch any database. Austrian and German names get mangled crossing borders and decades. List *every* plausible spelling of the surname and given name and search each one:

- An umlaut (ü) shows up three ways — ü, ue, and dropped to plain u. Search all three.
- Middle names drift (-fine / -fina / -phina). Treat **surname + date of birth** as your primary match keys, and don’t let a middle-name spelling difference throw out an otherwise-matching record.
- A woman who fled single and married later appears under her **maiden name** in arrival records and her **married name** in later ones. Search both.
- After the March 1938 Anschluss, Austria was annexed — so wartime Allied records often list an Austrian-born refugee’s nationality as “**German**.” That’s expected, not a discrepancy. Austria handles it routinely.
- Turn on phonetic / fuzzy / Soundex matching wherever a database offers it.

The core archives everyone uses (free, do these first)

These establish Austrian origin, Austrian residence, and persecution — no matter where your ancestor ended up. Most are instant and free:

- **Arolsen Archives** — <https://collections.arolsen-archives.org> — the world's largest archive on Nazi persecution: tracing case files, camp and displaced-persons records, postwar correspondence. A tracing case in the ancestor's name is independent proof they were persecuted and displaced. Searchable free online; some files unlock via a **free inquiry** (slow — average ~5 months, so file it early). *Note: Arolsen records alone can be judged "not sufficient" — use them as supporting evidence, not your sole proof.*
- **DÖW Gedenkbuch** (Documentation Centre of Austrian Resistance) — <https://www.doew.at/personensuche> — databases of Austrian victims of Nazism, including deportation records. If the ancestor's **parents or relatives were deported and murdered**, this is among the strongest possible persecution evidence. Important logic: an ancestor who **survived by fleeing will be absent here** — that absence is the normal signature of a successful escape, not evidence against your claim.
- **Yad Vashem — Central Database of Shoah Victims' Names** — <https://collections.yadvashem.org/en/names> — memorial pages, deportation lists, community records; since 2021 it includes survivors too. Pages of Testimony can name the ancestor's parents and birthplace, and reveal who submitted the page (a survivor submitting for murdered parents links them together).
- **USHMM Holocaust Survivors and Victims Database** — <https://www.ushmm.org/online/hsv> — a broad cross-check aggregating many collections.
- **IKG Wien** (Jewish Community of Vienna) — <https://www.ikg-wien.at/en/archive> — holds Vienna Jewish vital records (*Matriken* — births/marriages/deaths), Kindertransport departure lists, and a list of Jews living in Vienna as of 15 Sept 1939. The ancestor's **Vienna Jewish birth record** proves

Austrian origin and names the parents. This is **request-only and fee-based** (a signed user form required) — but see the fee-exemption tip below.

- **Wiener Stadt- und Landesarchiv (WStLA)** — the historical Vienna residence-registration records (*Meldezettel*), the door to the ancestor's **last Vienna address** and their deregistration entry when they fled. Request-only, ~€35/half-hour (€140 max), reply within ~2 months in German.
- **Austrian State Archives (ÖStA)** — the Nazi-era compulsory Jewish **asset declarations** (*Vermögensanmeldung*, filed in 1938) and restitution files. A 1938 asset declaration is a foundational primary state document naming the ancestor with DOB, profession, and address.
- **findbuch.at** — the online **finding aid** (200,000+ records) across Austrian property-seizure and restitution holdings. This is your **discovery layer**: search it (free, after registering) to learn whether a persecution/asset file exists, get its archival signature, and see which archive holds it — then order the physical file.
- **National Fund of the Republic of Austria** — office@nationalfonds.org — victim-recognition records. **If any victim-recognition or pension paper exists for your anchor, it is high-value evidence — hunt for it.**

Fee-exemption lever: official requests from a consulate, ministry, or court are **fee-exempt** at IKG and WStLA. The cheapest path for the Vienna birth record and last address is often

to let the consulate or the Austrian authority pull them as part of the §58c process, rather than paying for a parallel copy yourself.

The archives of wherever your ancestor fled to

Once someone fled Austria and **resettled**, their new country generated records too. These are often where the persecution/flight story actually gets *proven*. The people in these cases went everywhere — the **UK, the US, Palestine/Israel, France, Shanghai, Argentina, Australia**, and beyond — so I'll work the **UK** in detail as the example, then point you to the equivalents.

If your ancestor fled to Britain (the worked example):

- **UK National Archives (Kew) — Discovery catalogue** — <https://discovery.nationalarchives.gov.uk> (free). Key record series:
 - **HO 396 — wartime “enemy alien” tribunal cards.** For a genuine refugee, the card is typically headed “**Exemption from Internment — Refugee**” — an official UK government document classifying your ancestor a refugee, with exact identity, birthplace, DOB, and tribunal decision. This is often the **load-bearing** persecution evidence. Many are already digitised on Ancestry (the Wiener Library project), so you may get a scan without ordering from Kew. (Austrian-born refugees are usually listed nationality “German” here — expected.)
 - **HO 334 — naturalisation certificates.** Pins the exact date and certificate number. Historical quirk: a wife was often naturalised *on her husband’s certificate*, so there may be no standalone one in her name.
 - **HO 405 — aliens’ personal case files.** The deep file: police reports, the application, refugee background — the single richest source when it survives. Under **100-year closure** (~40% survive). To open a closed-but-catalogued file, submit a **Freedom of Information request to TNA itself** using the “Submit FOI request” button on the record’s Discovery page (free; ~20 working days).
- **Findmypast — the 1939 Register** — findmypast.co.uk (subscription/trial) — a national register taken 29 Sept 1939 giving name, exact DOB, occupation, and address. A **second official record placing the refugee in the UK by late 1939**. *Tip: download full-resolution images while logged in — the link dies when your session lapses.*
- **GRO — General Register Office** — order at gov.uk; free index at <https://www.freebmd.org.uk> — the descent-chain certificates (a UK-born parent’s birth certificate naming the ancestor by maiden name; the ancestor’s marriage certificate documenting a name change). Roughly **£12.50** for a standard certificate (fees drift — check the live GRO page).
- **World Jewish Relief / Central British Fund** — <https://www.worldjewishrelief.org/what-we-do/archives-your-family-history/> — the refugee-aid archive: registration cards and case files for Austria/Germany refugees and Kindertransport arrivals. **Free**, returned to families. Ask them to check for *any* refugee/arrival record 1938–40, not only Kindertransport.

If your ancestor fled elsewhere, look for the same **four record categories** and substitute the local institution:

1. **Immigration / naturalisation file** — the state record of arrival and citizenship.

2. **Refugee-aid organisation records** — the Jewish/refugee relief body that helped them.
 3. **National census / population register** — a headcount placing them in the country at a date.
 4. **Civil-registration certificates** — local birth/marriage/death records for the descent chain.
- **United States:** naturalisation petitions, alien “A-files,” and ship manifests via **NARA** (archives.gov; many imaged on Ancestry, FamilySearch, and the Ellis Island manifests); refugee-aid via **HIAS** and the **Joint (JDC)**; the 1940/1950 census; and state vital-records offices. USHMM (a core archive above) is US-based and especially rich here.
 - **Palestine / Israel:** Mandate-era immigration certificates; post-1948 Israeli **State Archives** and Population Registry; the **Central Zionist Archives** (Jerusalem). Yad Vashem (above) is central here.
 - **France:** naturalisation and *étranger* files at the **Archives nationales** and departmental archives; refugee-aid via **OSE** and **HICEM**; civil registration (*état civil*) at the local *mairie*.
 - **Shanghai:** the ghetto refugee community — **HICEM** and the Committee for Assistance of European Jewish Refugees (CFA) records; the **Shanghai Municipal Archives**; USHMM and Yad Vashem hold Shanghai collections.
 - **Argentina:** arrival records via **CEMLA** and the **Archivo General de la Nación**; refugee-aid via **AMIA** and **HIAS** successors; civil registration via the *Registro Civil*.
 - **Australia:** migrant arrival, alien-registration, and naturalisation files at the **National Archives of Australia** (naa.gov.au, much imaged); refugee-aid via the **Australian Jewish Welfare Society**; state Births, Deaths & Marriages registries.
 - **Anywhere else:** search the national archives for “aliens registration / naturalisation / immigration,” find the 1930s–40s Jewish refugee-aid organisation, and locate the national civil-registration authority. **Arolsen, USHMM, and Yad Vashem span every destination** — always the best starting cross-check.
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Records you have to ask for by email or post

Not everything is online. For those, the skill includes **ready-to-send, fill-in-the-blank templates** in [reference/03-email-request-templates.md](#) — copy one, replace every [BRACKETED] field, and send. There are templates for:

- **World Jewish Relief** (refugee tracing — free)
- **IKG Wien** (Vienna Jewish vital records — fee-based, requires the signed user form)
- **Wiener Stadt- und Landesarchiv** (the last-Vienna-address Meldeanfrage)
- **Austrian State Archives / ÖStA** (asset-declaration file copy + cost estimate)
- **UK National Archives FOI** (open a closed HO 405 file)
- **GRO** (order a UK certificate)
- **A generic template** for any other archive (the National Fund, a diocesan office, etc.)

Whatever you send: list **all** surname spellings and ask them to search each; state **surname + DOB as the primary match keys**; note maiden vs. married name and which period each applies to; and attach proof of descent only where required (otherwise offer it “on request”).

Putting it together

Once records start arriving, don't let them pile up as loose scans. Keep **one evidence register** — a single table that is your source of truth. Give each item four things:

- **What it proves** — the one §58c fact it supports (persecution, origin, or a specific descent link).
- **Source** — the archive that holds it, plus the stable archival reference so anyone can re-pull it.
- **Have / need / ordered** — its status.
- **Documented vs. inferred** — was this an actual record, or something you *reasoned*? Flag every inference **as** an inference. Never let a guess masquerade as a document.

Group the rows by what they prove — persecution, origin, descent chain, inferences, open leads — and you'll see your whole case at a glance: its strengths *and* its holes.

Then build a **clean briefing packet** — one document (ideally a single PDF) that anyone at the consulate, MA35, or a lawyer's office can read in five minutes:

1. **The case in three lines** — the statute, the persecuted ancestor, the one-line persecution fact, and who's filing. Then the **descent chain** as an explicit arrow chain (ancestor → ... → you → your kids).
2. **The evidence table**, grouped, with a status column showing what's in hand and what's still coming.
3. **Your questions**, numbered, in priority order.
4. **The exhibits** themselves, each behind a short cover block noting its source and reference.

A tip that genuinely helps: open the briefing with a short, humble note that your questions are a layperson's starting point and you'd welcome correction. It sets the right tone with an expert and invites teaching rather than a defensive answer.

Filing

Do the online questionnaire first. Each Austrian consulate has its own §58c questionnaire (the BMEIA info58c form, offered in German / English / Spanish / Hebrew). It generates your **individualized document list** and a **pre-filled declaration form** to print, sign, and submit. A started session is only valid for a limited window (~72 hours), so set aside time to finish it. Answer the "fled persecution" limb carefully — for a textbook flight case, the ancestor *did* have an Austrian residence until they fled, and they *did* go abroad because of persecution; that "yes" is your qualifying basis, so read each item twice.

File where you live. Jurisdiction is your **main residence**, and it's *exclusive* — you file at the consulate whose district covers your main residence, and **no other office can accept your declaration**. This has a sharp consequence: family members living in different consular districts **cannot all file at one office** — each files at their own. (An adult child away at college may be in a different district — pin down whether "main residence" is the college or the permanent home.) Not every post handles §58c the same way — some applicants have reported that a given consulate routed their §58c declaration to a different post — so **check**

whether **YOUR consulate processes §58c, using the official consular-jurisdiction list**, rather than assuming the nearest city. The consulate is a **mailbox** — it forwards everything to MA35 in Vienna, which is the actual decider.

The document checklist, in brief. Three groups with *different* format requirements:

- **Your own documents (strictest):** a valid passport; a **fresh certified birth certificate, apostilled**; and a recent **national-level criminal-record certificate**. These are the two documents that need authentication.
- **Descent-chain documents:** each birth/marriage certificate linking the generations — generally accepted as **plain photocopies, no apostille**.
- **Ancestor documents:** all “if available” — and remember Austria searches its own archives for these. You can file without the Vienna birth record.

The apostille / criminal-record / translation mechanics (using a **US applicant** as the concrete example — non-US applicants use their own country’s equivalents):

- **Own birth certificate → apostille.** Order a fresh certified original; a US applicant gets the apostille from the **issuing state’s Secretary of State**. (Applicants elsewhere use their country’s competent apostille authority; non-Hague-Convention countries use consular legalisation instead.)
- **National criminal-record certificate → apostille.** A US applicant uses the **FBI Identity History Summary** (a state-level certificate is *not* enough); because it’s a **federal** document, its apostille comes from the **US Department of State**, not a state office — so your two documents may go to two different offices. UK applicants use an ACRO Police Certificate, Germans a *Führungszeugnis*, and so on.
- **Whether the criminal-record certificate even needs an apostille is genuinely disputed** — ask your consular handler *before* paying for one.
- **Translations** are needed only for documents **not** in German or English. English-language US/UK records need none — a big simplifier.
- **Sequence the criminal-record check carefully:** it has a short validity window (the FBI report is commonly cited as ~6 months), and the clock runs against your **submission** date. Don’t pull it too early while waiting on the birth-certificate track, or it expires and you re-pull. Once your file reaches MA35 inside the window, everything freezes.

Your citizenship date is the day MA35 receives your declaration — not the approval date. §58c is *declaratory*: you become a citizen retroactively as of the date the competent authority (MA35 in Vienna) **receives** your declaration. Because the consulate is a forwarding mailbox, that receipt date can be somewhat *later* than the day you hand your papers in at the consulate — the two are not always the same day. (Confirm with your consulate which date controls in your case.) Either way it’s frozen well before approval, so don’t let a non-essential gap delay filing; file, and let Austria pull what it owns. Mailing your passport and originals to the consulate is normal and fast (one US applicant reported getting them back in ~9 days); personal appearance is usually not required.

Gotchas everyone should know

- **The consulate is a mailbox — MA35 decides.** Officers sometimes praise a file and signal a likely win, then MA35 rejects. Build the file for MA35's adjudication, not the officer's reaction.
- **Don't over-rely on Austria's archive search for *complex* cases.** For a straightforward flight case it's a real relief; for anything non-standard, MA35 wants the **2–3 standard registry documents** (birth / marriage / naturalisation records), not a clever historical substitute.
- **Pre-empt sloppy searching.** State — explicitly and redundantly — the ancestor's **maiden name**, the **exact town**, and the exact §58c sub-provision you're invoking. Include a **family-tree diagram**. Denials have happened because MA35 searched the wrong city or the married name.
- **"German" nationality on a 1938–45 record is not a discrepancy.** Post-Anschluss, Austrians were papered as German. Expected.
- **Victim-recognition / National Fund papers are gold.** If your anchor was ever officially recognised as a persecution victim, that's some of the strongest evidence there is.
- **The "other citizenship" trap:** acquiring a *new* foreign citizenship *after* filing — even while pending — causes **retroactive loss** of the Austrian one. Don't naturalise into anything new mid-process. (Relatedly: ~3 days after filing, MA35 sends a routine "other citizenship / military service" letter restating this. It's standard and **not** a sign of trouble.)
- **Each child needs a *separate* declaration.** Minors are filed by a parent (and can bundle with the parent's filing); adult children are independent declarants filing at *their own* districts — which is why a family of adults can end up filing at several consulates.
- **Shared ancestor evidence is submitted only *once*** across a family — later filers reference the first filing. (Because MA35 searches sloppily, a robust approach makes each file self-contained anyway.)
- **Front-load the parents' marriage certificate.** Applicants who included it proactively were sometimes fast-tracked; others waited twice as long for MA35 to ask.
- **Keep first names consistent** across your birth and marriage certificates — if they match, caseworkers usually won't probe. Where a name *did* change in the direct line, supply the bridging court order or marriage certificate.
- **Don't donate your original family documents to a museum** expecting to get them back quickly — they can go "out for digitisation" and vanish for years. Keep your own certified copies.
- **Timelines are a lottery.** Plan for **12–24 months** (some clean cases finish in ~4; the fastest reported was 48 days). The official "3–9 months" is optimistic. Variance is large and largely independent of your case's merits — a reassuring counterpoint: for the strong Jewish-flight profile, hostile battles are the rare exception, not the norm.

DIY or hire someone?

Because §58c is a **declaration**, not a discretionary application, a lawyer is genuinely optional — Austria's own guidance says so. The single biggest variable is **how much of your evidence you already hold vs. how much has to be dug out of Austrian archives.**

Lean DIY when your descent chain is documentable with certificates you can order yourself, your persecution evidence is in hand or is the kind Austria pulls, your documents are in English or German (no sworn translation), and eligibility is clean on its face. Plenty of clean cases finish in a few months, self-filed.

Lean toward hiring when the anchor's persecution is genuinely hard to evidence, you need certified German translations, you're coordinating a whole family with minors, there's a real legal wrinkle (a contested link, an unreconcilable name discrepancy), or you simply want to pay to offload the whole thing.

If you do hire: **confirm they're a registered Austrian attorney** (look them up in the regional bar directory), not a broker or citizenship-by-investment shop. Read the *review text* for real §58c-descendant success stories, not just a big generic star count. Get an **itemized, all-in, whole-family flat-fee quote** (nobody publishes prices — it's a request-a-quote market), and price at least two before committing.

You can do this

A note on tooling before the send-off: everything in this guide comes from a reusable **Claude Code skill** that lives in this same folder. If you're technically inclined and use Claude Code, it can drive the logged-in archives in a browser, organize your evidence register, draft your records-request emails from your details, and assemble the final briefing PDF for you. If you don't — this guide, and the reference and template files alongside it, stand entirely on their own.

The stories these documents tell are hard ones — families scattered, parents who didn't get out, a history most of us were told about only in fragments. But the door §58c opens is real, it's permanent so far as anyone knows, and it's yours by right, not by anyone's discretion. Eligibility is usually the easy part; the documentation is a project, not a mystery — and this is a well-worn path with an active, generous applicant community behind you.

Work the two fronts in parallel, let the records correct the family lore, don't let a non-essential gap delay filing, and confirm the real apostille scope with your consulate before doing a pile of unnecessary work. That's most of the wisdom right there.

Good luck — and pass this along to the next person who needs it.